

26PR00825 Estate of Louise Holcomb

County: sonoma

Division: Probate

Hearing date: 2026-08-28

Motion: Determine Succession to Primary Residence

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Estate of Louise Holcomb

26PR00825

Determine Succession to Primary Residence

Tentative Ruling: NO APPEARANCES REQUIRED. The Court has received and reviewed the declaration of counsel filed August 14, 2026. The Court treats the declaration as a supplement to the petition. CRC Rule 7.3(5). However, such a supplement "...must be signed and verified by one of the persons who were required to sign and verify the pleading that is supplemented." CRC Rule 7.104(b)(1). The Court does not find that the exception in that section applies as there is no basis to conclude the attorney has personal knowledge of the facts stated. (Evidence Code section 702). If counsel can obtain Petitioner's signature on a supplement prior to the hearing, they should request to appear for the purpose of presenting it to the Court. The Court is then inclined to grant the petition. Otherwise, this matter is CONTINUED to October 2, 2026 at 9:30 a.m. in Department 63 to allow Petitioner time to cure the defect.